



County Council Meeting November 21st 2023

Meeting Metadata	Details
Video Recording	https://www.youtube.com/watch?v=6MOeEepG1oU
Publication Date	2023-11-22T03:50:39Z
Target Category	delaware_county

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Municipal Meeting Summary Report

2. Meeting Identification & Attendance

- **Call to Order & Spoken Details:** The meeting was called to order at [00:02:25](#) by presiding officer Mr. Hughes. It was noted that President Piper was out of the state and not present.
- **Attendance:**
 - **Members Present:** Lanigan, M (Mr. M), Web, Whitehead, Freeman, and Presiding Officer Mr. Hughes.
 - **Members Absent:** President Piper.
 - **Presiding Officer:** Mr. Hughes.

3. Preliminary & Procedural Business

- **Ceremonial Openings:** Matt Willcox of the Veteran Affairs office led the assembly in the Pledge of Allegiance in recognition of Veterans Day [00:02:28](#).
- **Approval of Minutes:**
 - The October 24th special meeting minutes (budget reapproval) were approved via roll call vote.
 - The regular meeting minutes of October 24, 2023, were approved via roll call vote.

4. Substantive Business & Board Action

- **00:05:41 County General Fund 1000 Transfers**
 - **Sponsor / Presenter:** Clerk's Office / Auditor's Office.
 - **Deliberation Summary:** Discussion regarding transferring \$3,000 into office equipment/computers (line 441) from supplies to purchase four additional computers ahead of 2026 support expiration dates.
 - **Action & Vote Disposition:** Approved via roll call vote (Web voted "no"; all other present members voted "yes").
- **00:07:35 EMS Fund 155 Transfers**
 - **Sponsor / Presenter:** EMS Department.
 - **Deliberation Summary:** Transfers moving funds from vacant/workers' comp lines into paramedic pay, advanced EMT pay, and overtime. A staff member who completed paramedic school is receiving higher pay prior to the January 1 budget implementation.
 - **Action & Vote Disposition:** Approved via roll call vote (Passed Unanimously).
- **00:10:38 Jail Fund 145 Transfers**
 - **Sponsor / Presenter:** Jail Department.
 - **Deliberation Summary:** Extensive line-item transfers moving excess salary funds from vacant/open correctional officer positions into overtime and holiday pay accounts.
 - **Action & Vote Disposition:** Approved via roll call vote (Passed Unanimously).
- **00:16:06 Sheriff Fund 129 Transfers**
 - **Sponsor / Presenter:** Sheriff's Department.
 - **Deliberation Summary:** Routine line-item clean-up transfers within the sheriff's budget.
 - **Action & Vote Disposition:** Approved via roll call vote (Passed Unanimously).
- **00:16:55 Prosecutor Fund 1337 Transfers**
 - **Sponsor / Presenter:** Lisa Carr (Prosecutor's Office) / Steve Foster (Building Superintendent).
 - **Deliberation Summary:** Discussion regarding funds needed for an office remodel (wall construction, door, and electrical work to accommodate dedicated circuits for copy machines). Funded via a vacant Deputy Prosecutor position line.
 - **Action & Vote Disposition:** Approved via roll call vote (Web voted "no"; all other present members voted "yes").
- **00:28:00 Auditor Fund 126 Transfer**
 - **Sponsor / Presenter:** Auditor's Office / Mr. Carol.
 - **Deliberation Summary:** Transfer correcting an omission for replacement personnel (Chief Deputy/settlement).
 - **Action & Vote Disposition:** Approved via roll call vote (Passed Unanimously).
- **00:29:52 Adult User Fee Fund 2100 Transfer**

- **Sponsor / Presenter:** Emily Anderson (Court Administrator).
 - **Deliberation Summary:** Transfer of \$500 from office machines to communication/transportation mileage to cover mandatory in-person juvenile probation visits across the state.
 - **Action & Vote Disposition:** Approved via roll call vote (Passed Unanimously).
- **00:31:21 Motor Vehicle Highway Fund 1176 Transfers**
 - **Sponsor / Presenter:** Highway Department.
 - **Deliberation Summary:** Transfers to replace a truck driver who quit.
 - **Action & Vote Disposition:** Approved via roll call vote (Passed Unanimously).
- **00:32:26 LIT Jail Fund 11745 Transfers**
 - **Sponsor / Presenter:** Jail Department.
 - **Deliberation Summary:** Line-item adjustments and employee replacements for correctional officers utilizing LIT jail funds.
 - **Action & Vote Disposition:** Approved via roll call vote (Passed Unanimously).
- **00:38:25 LIT Sheriff Fund 11701 Transfers**
 - **Sponsor / Presenter:** Sheriff's Department.
 - **Deliberation Summary:** Line-item adjustment for life insurance and FICA.
 - **Action & Vote Disposition:** Approved via roll call vote (Passed Unanimously).
- **00:39:14 Reassessment Fund 1224 Transfers**
 - **Sponsor / Presenter:** Assessor's Office.
 - **Deliberation Summary:** Transfers involving board of appeals, software maintenance, PDF posting, and mileage.
 - **Action & Vote Disposition:** Approved via roll call vote (Passed Unanimously).
- **00:42:15 Ineligible Standard Deduction Fund Transfers**
 - **Sponsor / Presenter:** Auditor's Office.
 - **Deliberation Summary:** Transfer of \$500 from part-time to per-time lines.
 - **Action & Vote Disposition:** Approved via roll call vote (Passed Unanimously).
- **00:43:20 Additional Appropriation: Other GIS Map Fund 1150**
 - **Item Identifier & Title:** 00:43:20 GIS Map Fund 1150: Appropriation of \$75,000
 - **Sponsor / Presenter:** Kyen Swackhammer (Plan Commission).
 - **Deliberation Summary:** Appropriation to pay for a Transmap road inventory assessment and scoring project covering the County, City, and Yorktown. Reimbursed 100% (80% INDOT, 20% local municipal contributions).
 - **Action & Vote Disposition:** Approved via roll call vote (Passed Unanimously).
- **00:45:29 Additional Appropriation: Opioid Response Fund 8199**
 - **Item Identifier & Title:** 00:45:29 Opioid Response Fund 8199: Appropriation of \$8,100
 - **Sponsor / Presenter:** Emily Anderson (Court Administrator).
 - **Deliberation Summary:** Grant-shared funding to lease an automated check-in kiosk for lower-level probationers in the Justice Center lobby to free up officer time.
 - **Action & Vote Disposition:** Approved via roll call vote (Passed Unanimously).

- **00:48:33 Additional Appropriation: Reassessment Fund 1224**
 - **Item Identifier & Title:** 00:48:33 Reassessment Fund 1224: Appropriation of \$544
 - **Sponsor / Presenter:** Assessor's Office.
 - **Deliberation Summary:** Appropriation for the remainder of the Board of Appeals expenses.
 - **Action & Vote Disposition:** Approved via roll call vote (Passed Unanimously).
- **00:51:29 Review of Status of Meadow Forge and Hawthorne Tax Abatement Resolutions**
 - **Item Identifier & Title:** 00:51:29 Review of Tax Abatement Resolutions for Meadow Forge (Washington Township) and Hawthorne (Delaware Township) Solar Projects.
 - **Sponsor / Presenter:** Mr. Hughes / Council Members.
 - **Deliberation Summary:** Comprehensive review of the history of solar tax abatements, zoning ordinances, the county moratorium expiring December 31, and recent Plan Commission/Commissioner actions. Council discussed referring the tax abatements back to the Tax Abatement Committee to pull updated figures from Baker Tilly, obtain status reports from developers, and schedule a dedicated public hearing to consider potential recension.
 - **Action & Vote Disposition:** Approved motion to refer both tax abatements back to the Tax Abatement Committee for review, obtain information from Baker Tilly, and schedule a public meeting/hearing with developers via roll call vote (Passed Unanimously).

5. Open Public Comment / Citizen Forum

- **01:18:39 Cheryl Swingley** (3908 North Woods Drive, Muncie)
 - Spoke in favor of renewable energy tax revenues, citing financial benefits, courthouse/sewer infrastructure funding, and landowner lease benefits observed in neighboring Randolph County.
- **01:22:10 Linda Hansen** (Spokesperson for the League of Women Voters of Muncie-Delaware County)
 - Emphasized support for utility-scale solar, highlighted the League's positions, and expressed concern that restrictive setbacks (like 500-foot rules) could jeopardize revenue.
- **01:25:35 Christina Wheeler** (Attorney and Partner at Bose McKinney & Evans, representing Invenergy LLC / Meadow Forge Solar Project)
 - Stated that the company is willing to provide status reports, argued that tax abatement agreements cannot legally be rescinded absent a default by the company, and noted that the project has invested roughly \$5 million while working alongside a County Commissioners' Economic Development Agreement (\$1.6 million).

- **01:31:38 David Mock** (17000 North County Road 500 West)
 - Thanked the council members for their scrutiny of the tax abatement and questioned the good-faith representations of the solar developers.
 - **01:32:46 Britney Mock** (Gast, Indiana)
 - Supported sending the abatements back to the committee, reviewing the Economic Revitalization Area (ERA) designations, and holding a special public hearing.
 - **01:34:22 Victoria Gasaway**
 - Questioned project improvement depreciation schedules over a 30-year lifecycle, noted discrepancies in application disclosures regarding environmental impacts, and listed other Indiana counties dealing with large solar footprints.
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6. Administrative Updates & Adjournment

- **Staff / Board Announcements:**
 - Emily Anderson previewed an upcoming copier transfer request for January.
 - Treasurer Brad Polk delivered the tax collection and interest revenue report, noting approximately \$117 million collected for fall (projected to reach \$120<U+2013>121 million) and interest earnings projected at \$3.2 million for the year.
 - A special meeting was announced for the following Tuesday at 9:00 AM to consider an additional appropriation.
 - The next regular meeting is scheduled for Tuesday, December 12, 2023, at 9:00 AM (with a board appointment deadline of December 1).
 - **Adjournment:** Official motion to adjourn made by Lanigan, seconded, and approved via roll call vote.
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